

25TRCV01968 25TRCV01968

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-23

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Case Number: 25TRCV01968 Hearing Date: June 23, 2026 Dept: E

Superior Court

of California

County of Los

Angeles

Southwest

District

Torrance Dept. E

ANDREW

GOODMAN

Plaintiff,

Case No.:

25TRCV01968

vs.

[Tentative]

Denied

BLUE AND

GOLD TENANT, LLC; PINCAY RE LLC; PINCAY RE MEMBER LLC; STADCO LA MANAGER,

LLC; KROENKE SPORTS & ENTERTAINMENT, LLC; HOLLYWOOD PARK LAND COMPANY, LLC;

DOES 1 to 50,

Defendant.

Hearing

Date: June

23, 2026

Moving Parties: Plaintiff Andrew Goodman

Responding Party: Defendants Pincay Re, LLC, Stadco LA, LLC,

and Hollywood Park Management Company, LLC

HEARING: Motion for Trial Preference

The

Court considered the moving, opposition, and reply papers.

RULING

The Court denies the

Motion for Trial Preference.

BACKGROUND

On June

16, 2026, Plaintiff Andrew Goodmand filed the Complaint against Defendant Blue and Gold Tenant LLC, Pincay Re LLC, Stadco LA Manager LLC, Kroenke Sports & Entertainment LLC, and Hollywood Park Land Company LLC, alleging causes of action for negligence and premises liability.

On April 20, 2026,

Plaintiff filed the Motion for Trial Preference.

On June 9, 2026,

Defendants filed the Opposition.

On June 12, 2026,

Plaintiff filed the Reply.

LEGAL STANDARD

Code

of Civil Procedure Section 36 reads:

(a) A party to a civil action who is

over 70 years of age may petition the court for a preference, which the court

shall grant if the court makes both of the following findings:

(1) The

party has a substantial interest in the action as a whole.

(2) The

health of the party is such that a preference is necessary to prevent

prejudicing the party's interest in the litigation.

(Code Civ. Proc. § 36 subd (a).)

DISCUSSION

Plaintiff argues that

trial preference should be granted as he is 80 years old and his medical condition creates a substantial risk that delay would prejudice his interest in the litigation and impair his ability to fully participate in prosecuting the case.

Plaintiff details an extensive medical

history, including ongoing cardiology care for hypertension, hyperlipidemia, and coronary artery disease, a 2024 percutaneous coronary intervention with stent placement, and a current daily medication regimen addressing cardiovascular disease, benign prostate hyperplasia, gastrointestinal issues, and irritable bowel syndrome. Plaintiff also notes a history of asthma, including a 2023 asthma attack, and a recent recurrence of basal cell carcinoma.

Plaintiff further argues that the incident

giving rise to this action caused significant injuries, including facial and ocular trauma and a right rotator cuff tear with ongoing shoulder dysfunction, and that the combination of his advanced age of 80 years, his multiple chronic

conditions, and his continuing treatment needs for these incident-related

injuries together establish a substantial risk that further delay could

compromise his ability to participate in the litigation and obtain complete

relief.

In opposition, Defendant

argues the motion for trial preference should be denied because Plaintiff has

failed to show that his health is such that preference is necessary to prevent

prejudicing his interest in the litigation.

Defendant argues Plaintiff's own deposition

testimony demonstrates an active lifestyle and stable health. Defendant points

to testimony that Plaintiff lives at home without home health care or

professional assistance, drove a long road trip from Orange County to Phoenix

with his wife earlier this year, walks one to two miles a day unassisted,

vacationed on a Caribbean cruise in December 2025, and has additional travel

planned to Las Vegas, Minneapolis, and Columbus in the coming months. Defendant

contends this level of activity is inconsistent with any claim of deteriorating

health that would be prejudiced by the current October 2027 trial date.

Defendant further argues Plaintiff's

declaration offers only generalized descriptions of chronic conditions and

conclusory assertions, without any physician statement indicating Plaintiff may

be unable to participate in litigation by the scheduled trial date. As to the cardiac conditions, Defendant notes Plaintiff's stent procedure occurred in August 2024, before the subject incident, and that Plaintiff does not claim these conditions are worsening or unstable. As to asthma, Defendant notes Plaintiff has had the condition for approximately forty years without evidence of worsening severity or impact on daily activities. As to basal cell carcinoma, Defendant notes Plaintiff was first diagnosed approximately twenty years ago and provides no information regarding the severity, treatment, or prognosis of the recent recurrence.

On the incident-related injuries, Defendant argues Plaintiff testified he has not undergone shoulder surgery in the year and a half since the incident and remains unsure whether surgery will even be needed, and that his facial and ocular injuries primarily affect vision quality and his ability to fully open his right eye without evidence of being life-threatening or affecting life expectancy.

"The relevant standard under subdivision (a) is more open-ended. The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is

a showing that that party's health ... is such that a preference is necessary to prevent prejudicing [his] interest in the litigation." (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534.)

Here, the Court finds

that Plaintiff is in good health for his age, lives an active and fulfilling lifestyle, and that his health conditions seem to be well under control.

Therefore, the Court finds that Plaintiff has failed to show that the preference would be necessary to avoid prejudicing Plaintiff.

Therefore, the Court denies the Motion for Trial

Preference.